



File No.: EXP202308821

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: On May 16, 2023, a document was submitted to this Spanish Agency for the Protection of Data by A.A.A. (hereinafter, the complainant) in which a complaint is made against MINAS DE VALDECASTILLO, S.A. with NIF A24014144 (hereinafter, the defendant), for the installation of a video surveillance system, with indications of a possible violation of the provisions of the personal data protection regulations.

The complaint is based on the fact that the defendant has installed a video surveillance camera that is capable of capturing images of public roads, without any evidence of prior administrative authorization for this. Furthermore, the camera is marked with a sign indicating a video surveillance area that does not include the mandatory information about the data controller and the address to which one should direct requests to exercise rights, thus preventing the complainant from exercising their right of access to images captured by this system.

The complainant provides an image of an area with cameras from the defendant and an informational sign lacking information about the data controller and the address to which one should direct requests to exercise rights.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the defendant for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in the data protection regulations.

The transfer was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic notification, and was received by the responsible party on June 26, 2023, according to the certificate in the file.

No response was received to this notification.

THIRD: On August 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

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FOURTH: On July 19, 2024, the Director of the Spanish Agency for the Protection of Data decided to initiate sanctioning proceedings against the defendant for the alleged infringement of Articles 13 and 5.1.c) of Regulation (EU) 2016/679 General Data Protection Regulation (hereinafter GDPR), classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was duly notified in accordance with the rules established in the LPACAP, with the corresponding proof of access via electronic means on July 22, 2024. After the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the defendant.

Article 64.2.f) of the LPACAP - a provision of which the defendant was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that constituted the accusation, the infringement of the GDPR attributed to the defendant, and the sanction that could be imposed. Therefore, considering that the

defendant has not made any allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all the actions taken by the Spanish Agency for the Protection of Data in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: According to the photographs in the file, there is a video surveillance camera capable of capturing images of public roads. The camera is marked with a sign indicating a video surveillance area that does not reference the current personal data protection regulations, does not include the mandatory information about the data controller, nor does it indicate the address to which one should direct requests to exercise rights.

SECOND: The Spanish Agency for the Protection of Data has notified the defendant of the Agreement to Initiate this Sanctioning Procedure, and the defendant has not submitted any allegations or evidence contradicting the reported facts.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD,

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The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system complies with the provisions of the GDPR.

III

Infringement

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD states that individuals or legal entities, whether public or private, may carry out the processing of images through systems of cameras or video cameras for the purpose of preserving the safety of individuals and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In this regard, Article 22 of the LOPDGDD provides that this duty of information, as stipulated in Article

12 of the GDPR, shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at a minimum, the existence of the processing, the identity of the controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

This informative device must be placed, at a minimum, at the entrances to the monitored areas, whether they are indoors or outdoors. If the monitored space has several accesses, such a distinguishing mark of the monitored area must be provided at each of them.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. In this case, it is worth highlighting the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is appropriate and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing carried out on them.

According to the above, the processing of excessive data must be restricted or the data must be deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, since the processing of images in public places, unless there is government authorization, can only be carried out by the Security Forces and Bodies.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

Consequently, cameras and video cameras installed for security purposes may not capture images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such an extraordinary case, the cameras may only capture the minimum portion necessary to preserve the safety of individuals and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, they may not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely transiting the area. Therefore, the placement of cameras aimed at the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted.

Images may also not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the individuals present in those spaces.

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Furthermore, it is deemed disproportionate to capture images in private spaces, such as changing rooms, lockers, or employee rest areas.

For the reasons stated, and in accordance with the facts considered proven in this resolution, it is deemed that there has been a violation of the regulations regarding personal data protection by the party claimed responsible for a video surveillance system that is capable of capturing images of public thoroughfares, without evidence of prior administrative authorization for such. Additionally, the monitored area, although marked with an informative sign, lacks the legally required information, in particular, the identity of the data controller and the address to which individuals can direct requests to exercise the rights recognized in Articles 15 to 22 of the GDPR.

Classification and Qualification of the Violation

In accordance with the proven facts in this sanctioning procedure, it is considered that the known facts constitute a violation, attributable to the party claimed, for violating Articles 5.1(c) and 13 of the GDPR. Such violations are classified under Article 83.5 of the GDPR, which states the following:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of the data subjects under Articles 12 to 22; (...).”

For the purposes of the statute of limitations for violations, Article 72.1 of the LOPDGDD considers very serious violations, which shall prescribe after three years, for violations that constitute a substantial breach of the articles mentioned in Article 83.5 of the GDPR and, in particular, the following:

“a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this Organic Law.”

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V

Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is necessary to adjust the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and as provided in Article 76 of the LOPDGDD, regarding subsection k) of the aforementioned Article 83.2 GDPR.

In light of the facts presented, it is considered appropriate to impose a sanction on the party claimed for the violation of Article 13 of the GDPR and Article 5.1(c) of the GDPR, both classified under Article 83.5 of the GDPR. The balance of the circumstances considered, regarding the violations committed, allows for the imposition of a fine of 500 euros, and another of 500 euros, respectively.

VI

Measures

As already indicated in the initiation agreement, and in accordance with the provisions of the cited Article 58.2(d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, when appropriate, in a specific manner and within a specified period [...]”, the claimed parties are required to adopt the following measures:

- In the event that the installed camera is maintained, reoriented, it must be demonstrated that the information provided in the informative device has been completed (at a minimum, the existence of processing, the identity of the controller, and the possibility of exercising the rights recognized in Articles 15 to 22 of the GDPR must be identified), placing this device in a sufficiently visible location, both in open and closed spaces.
- In the case mentioned in the previous subsection, it must be demonstrated that the information referred to in Articles 13 and 14 of the GDPR is available to the affected parties.
- It must be demonstrated that the camera or video camera system has been removed from its current location or reoriented in such a way that the viewing of the images evidences that no areas of the

public thoroughfare are captured.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative violation in accordance with the provisions of the GDPR, classified as a violation in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and evaluated the criteria for the graduation of the sanctions whose existence has been established,

The Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO IMPOSE on MINAS DE VALDECASTILLO, S.A., with NIF A24014144, a fine of 500 euros for an infringement of Article 13 of the GDPR and Article 5.1.c) of the GDPR, classified under Article 83.5 of the GDPR, and another fine of 500 euros, respectively.

SECOND: TO ORDER MINAS DE VALDECASTILLO, S.A., with NIF A24014144, in accordance with Article 58.2.d) of the GDPR, to prove compliance with the following measures within ten days from the date this resolution becomes final and enforceable:

- In the event that the installed camera remains, reoriented, to have proceeded with the placement of the informative device in the monitored areas or to complete the information provided therein (at a minimum, it must identify the existence of processing, the identity of the controller, and the possibility of exercising the rights recognized in Articles 15 to 22 of the GDPR), placing this device in a sufficiently visible location, both in open and closed spaces.
- In the case indicated in the previous section, to have the information referred to in Articles 13 and 14 of the GDPR available to the affected parties.
- To have proceeded with the removal of the camera or video camera system from the current location or to its reorientation, in such a way that the viewing of the observed images evidences that public areas are not captured.

THIRD: TO NOTIFY this resolution to MINAS DE VALDECASTILLO, S.A.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be suspended provisionally if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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